



Local Authority Social Services Act 1970

1970 CHAPTER 42

An Act to make further provision with respect to the organisation, management and administration of local authority social services; to amend the Health Visiting and Social Work (Training) Act 1962; and for connected purposes. [29th May 1970]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Local
authorities.

1. The local authorities for the purposes of this Act shall be the councils of counties, county boroughs and London boroughs and the Common Council of the City of London.

Local
authority to
establish
social services
committee.

2.—(1) Every local authority shall establish a social services committee and, subject to subsection (3) below, there shall stand referred to that committee all matters relating to the discharge by the authority of—

- (a) their functions under the enactments specified in the first column of Schedule 1 to this Act (being the functions which are described in general terms in the second column of that Schedule); and
- (b) such other of their functions as, by virtue of the following subsection, fall within the responsibility of the committee.

(2) The Secretary of State may by order designate functions of local authorities under any other enactment for the time being in force as being appropriate for discharge through a local authority's social services committee other than functions which

by virtue of that or any other enactment are required to be discharged through some other committee of a local authority ; and any functions designated by an order under this section which is for the time being in force shall accordingly fall within the responsibility of the social services committee.

(3) Matters relating to the discharge by a local authority of the following functions of the authority, that is to say—

(a) functions under section 22 of the National Health Service 1946 c. 81.

Act 1946 (care of certain mothers and young children) relating to the dental care of such mothers and children as are mentioned in subsection (1) of that section ; and

(b) any other functions under subsection (1) or (2) of the said section 22 specified in a direction given under subsection (4) below and for the time being in force, and any functions under section 12 of the Health 1968 c. 46. Services and Public Health Act 1968 (prevention of illness and care and after-care of the sick) so specified,

shall not stand referred to a local authority's social services committee.

(4) The Secretary of State may direct that such of the functions mentioned in subsection (3)(b) above as are specified in the direction, being functions which appear to him to be mainly medical in nature, shall stand referred to the health committee of a local authority.

(5) A direction given under subsection (4) above may apply either to local authorities generally or to particular local authorities specified in the direction and may be revoked or varied by a subsequent direction so given.

(6) A matter which by this section stands referred to a local authority's social services committee shall not be included among the matters which stand referred to the authority's health committee under Part II of Schedule 4 to the National Health Service Act 1946.

(7) Section 33(2) of the National Assistance Act 1948 and 1948 c. 29. Schedule 3 to that Act (establishment of committees or joint boards for the purposes of the functions of local authorities under Part III of that Act) and section 39 of the Children Act 1948 1948 c. 43. (establishment of children's committees of local authorities), shall cease to have effect.

3.—(1) Except with the consent of the Secretary of State (which may be given either generally or with respect to a particular authority) or as provided by this section, no matter, other than a matter which by virtue of section 2 of this Act stands referred to a local authority's social services committee, shall be referred to, or dealt with by, the committee.

(2) A local authority may refer to their social services committee a matter arising in connection with the authority's functions under—

1962 c. 33.

(a) section 5(1)(c) of the Health Visiting and Social Work (Training) Act 1962 (research into matters relating to functions of local health authorities), or

1968 c. 46.

(b) section 65 of the Health Services and Public Health Act 1968 (financial and other assistance to voluntary organisations),

and appearing to the authority to relate to their social services ; and a matter which by virtue of paragraph (a) above is referred to a local authority's social services committee shall not stand referred to the authority's health committee under Part II of Schedule 4 to the National Health Service Act 1946.

1946 c. 81.

(3) A local authority may delegate to their social services committee any of their functions matters relating to which stand referred to the committee by virtue of section 2 of this Act or this section (hereafter in this Act referred to as "social services functions") and, before exercising any of those functions themselves, the authority shall (unless the matter is urgent) consider a report of the committee with respect to the matter in question.

(4) Nothing in section 2 of this Act or this section prevents a local authority from referring to a committee other than their social services committee a matter which by virtue of either of those sections stands referred to the social services committee and which in the authority's opinion ought to be referred to the other committee on the ground that it relates to a general service of the authority ; but before referring any such matter the authority shall receive and consider a report of the social services committee with respect to the subject matter of the proposed reference

Joint
committees
and sub-
committees.

4.—(1) Two or more local authorities may, instead of establishing social services committees for themselves, concur in establishing a joint social services committee ; and references in this Act to a local authority's social services committee shall, in relation to an authority which has so concurred with another or others, be construed as references to the joint committee, except where the context otherwise requires.

(2) A social services committee may, subject to any restrictions imposed by the local authority or, as the case may be, the local authorities concurring in the establishment of the committee, establish sub-committees and delegate to them any of the functions of the committee.

(3) The social services committees of two or more local authorities may concur in the establishment of joint sub-committees and may, subject to any restrictions imposed by the local authorities concerned, delegate to them any of the functions of either or any of the committees.

5.—(1) Subject to subsection (3) below, the members of a local authority's social services committee may include persons who are not members of the authority or, as the case may be, of any authority concurring in the establishment of the committee, provided that they are not disqualified from being members of that authority or any such authority. Membership of committees and sub-committees.

(2) Subject to subsection (3) below, a social services committee may, if authorised to do so by the local authority or, as the case may be, the local authorities concurring in the establishment of the committee and subject to any restrictions imposed by that authority or those authorities, co-opt persons to serve as members of the committee, provided that they are not disqualified from being members of that authority or any of the said authorities.

(3) At least a majority of the members of a local authority's social services committee shall be members of that authority or, as the case may be, of the authorities concurring in the establishment of the committee.

(4) The members of a sub-committee established under section 4(2) of this Act—

- (a) shall include at least one member of the local authority or, as the case may be, of each of the local authorities concerned ; and
- (b) may include persons who are not members of the social services committee, provided that they are not disqualified from being members of the local authority or, as the case may be, of any of the said authorities.

(5) The members of a joint sub-committee established under section 4(3) of this Act—

- (a) shall include at least one member of each of the local authorities concerned ; and
- (b) may include persons who are not members of any social services committee concurring in the establishment of the sub-committee, provided that they are not disqualified from being members of any of the said authorities.

1933 c. 51. (6) In this section "disqualified" means disqualified under section 59 of the Local Government Act 1933 (which relates to office-holders under local authorities, bankrupts, persons who have been convicted, etc.).

The director
of social
services.

6.—(1) A local authority shall appoint an officer, to be known as the director of social services, for the purposes of their social services functions.

(2) Two or more local authorities may, if they consider that the same person can efficiently discharge, for both or all of them, the functions of director of social services, concur in the appointment of a person as director of social services for both or all of those authorities.

(3) The Secretary of State may make regulations prescribing the qualifications requisite for a person's appointment as a local authority's director of social services.

(4) Until the first coming into force of regulations made under subsection (3) above, a local authority shall not appoint, nor concur in the appointment of, a director of social services except after consultation with the Secretary of State ; and—

(a) for the purpose of such consultation an authority shall send to the Secretary of State particulars of the name, age, experience and qualifications of each of the persons from whom a selection is proposed to be made ; and

(b) if the Secretary of State is of opinion that any of those persons is not a fit person to be the director of social services, he may give directions prohibiting his appointment.

(5) The director of social services of a local authority shall not, without the approval of the Secretary of State (which may be given either generally or in relation to a particular authority), be employed by that authority in connection with the discharge of any of the authority's functions other than their social services functions.

(6) A local authority which have appointed, or concurred in the appointment of, a director of social services, shall secure the provision of adequate staff for assisting him in the exercise of his functions.

(7) The authority or authorities appointing a director of social services may pay to him such reasonable remuneration as they may determine ; and he shall hold office during their pleasure.

1948 c. 43.

(8) Section 41 of the Children Act 1948 (appointment of children's officer) shall cease to have effect.

7.—(1) Local authorities shall, in the exercise of their social services functions, including the exercise of any discretion conferred by any relevant enactment, act under the general guidance of the Secretary of State.

(2) Subsection (1) above shall not affect a local authority's duty to exercise their functions under—

(a) sections 21 and 24 of the National Assistance Act 1948 (provision of residential or temporary accommodation for the aged, infirm, etc.), or

(b) section 29 of that Act (welfare of the handicapped), or

(c) section 3 of the Disabled Persons (Employment) Act 1958 (provision for employment and training of persons who are seriously disabled),

in accordance with any scheme under any of those sections which is in force with the approval of a Minister of the Crown given under section 34 of the said Act of 1948 or in accordance with a scheme made by a Minister of the Crown under the said section 34.

The foregoing provision is without prejudice to subsection (2) of section 2 of the Chronically Sick and Disabled Persons Act 1970 (which excludes arrangements made in pursuance of subsection (1) of the said section 2 and certain other arrangements from the requirement that arrangements made by a local authority under section 29 of the said Act of 1948 shall be carried into effect in accordance with a scheme made thereunder).

(3) Subsection (1) above shall not affect a local authority's duty to carry out their duties under—

(a) section 22 of the National Health Service Act 1946 (care of certain mothers and young children), or

(b) section 12 of the Health Services and Public Health Act 1968 (prevention of illness and care and after-care of the sick),

in accordance with proposals approved or made by a Minister of the Crown under section 20 of the said Act of 1946.

8.—(1) The council of a county borough may, if they think it convenient so to do, keep separate accounts of the sums received and expended by them in the exercise of their social services functions.

(2) Accounts kept under this section shall be made up and audited in like manner as the accounts of a county council.

(3) The enactments relating to the audit of accounts by a district auditor and to the matters incidental to such audit and consequential thereon shall have effect in relation to the accounts which the council of a county borough keep under this section as they have effect in relation to the accounts of a county council.

(4) The foregoing provisions of this section shall apply to the Common Council of the City of London and to accounts kept by that council under this section as they apply to the council of a county borough and to accounts kept by such a council thereunder.

- 1948 c. 43. (5) Section 49 of the Children Act 1948 (certain councils required to keep separate accounts of sums received and expended by them in exercising functions under the enactments relating to children and young persons) and, in so far as they relate to social services functions, section 55 (1) of the National Health Service Act 1946 (similar provision relating to functions of certain local health authorities) and section 59 of the National Assistance Act 1948 (similar provision relating to functions of certain councils under that Act) shall not apply to the council of a county borough who keep accounts under this section or, if the Common Council of the City of London keep accounts thereunder, to that council.
- 1946 c. 81.
- 1948 c. 29.

(6) Section 49 of the Children Act 1948 shall cease to apply to London borough councils.

Protection of
interests, etc.
of local
authority
staffs.

9.—(1) The Secretary of State shall by order make provision for the protection of the interests of any existing staff affected by the provisions of section 2 or 6 of this Act, and that order may contain provisions applying, amending or repealing any provision made by or under any enactment and relating to the conditions of service of, or the payment of superannuation or other benefits to or in respect of, existing staff.

- 1958 c. 55. (2) Regulations under section 60(2) of the Local Government Act 1958 (provision to be made by regulations for the payment of compensation in certain cases) may make provision in relation to persons who suffer loss of employment or loss or diminution of emoluments which is attributable to the provisions of section 2 or 6 of this Act.

(3) Regulations made by virtue of subsection (2) above may be so framed as to have effect from a date earlier than that on which they are made, so however that so much of any regulations as provides that any provision thereof is to have effect from a date earlier than that on which they are made shall not place any person (other than the person required by the regulations to pay compensation) in a worse position than he would have been in if the regulations had been so framed as to have effect only as from the date on which they are made.

(4) In this section "existing staff" means—

- (a) persons who both immediately before and immediately after the coming into force in the area of a local authority of section 2 or 6 of this Act are employed

by the authority in connection with the discharge by the authority of any function which immediately after the coming into force in that area of the said section 2 or 6, as the case may be, is a social services function of the authority ; and

(b) persons who both immediately before and immediately after the coming into force in the area of a local authority of—

(i) an order under section 2(2) of this Act, or

(ii) a direction under section 2(4) thereof, not being a direction which comes into force in that area on the same date as that on which that section comes into force therein,

are employed by the authority in connection with the discharge by the authority of any function to which the order or direction, as the case may be, relates.

10.—(1) After the date of the coming into force of this section no delegation scheme shall be made under section 46 of the Local Government Act 1958 (certain functions of a county council, so far as they relate to a county district for which a delegation scheme under that section is in force, to be exercisable by the council of that district on behalf of the county council) and no steps shall be taken under section 47 of that Act (procedure for bringing a delegation scheme into operation) to bring into operation any scheme which is not in operation on that date. Delegation schemes to be revoked, so far as they relate to social services functions. 1958 c. 55.

(2) The council of a county district for which a delegation scheme is in force immediately before the said date shall, within such period as the Secretary of State may direct, make in accordance with section 48(1) of the said Act of 1958 a subsequent scheme varying the delegation scheme by revoking it in so far as it relates to functions which at the time when the scheme is made are social services functions of the county council by virtue of section 2 of this Act.

(3) Subsection (2) above shall not be taken as affecting the power of the council of a county district under the said section 48(1) to revoke a delegation scheme, whether such a delegation scheme as is referred to in subsection (2) above or that scheme as varied in accordance with that subsection.

(4) A direction given under subsection (2) above may prescribe different periods for different counties or for different county districts in a county and may be varied by a subsequent direction so given.

(5) Section 47(3) of the said Act of 1958 (which, as applied by section 48(1) of that Act, specifies the times at which subsequent schemes under section 48(1) may be made), and section 51 of that Act (which enables delegation schemes to be made by certain joint boards), shall cease to have effect.

(6) In section 46(5) of the said Act of 1958 (which provides that the power of a county council, in the exercise of functions to which a delegation scheme relates, to make contributions to voluntary organisations may be exercised by the county council as well as by the council of the county district for which the scheme is in force) for the words "make contributions to voluntary organisations" there shall be substituted the words "assist voluntary organisations in any manner mentioned in subsection (1) or (2) of section 65 of the Health Services and Public Health Act 1968".

1968 c. 46.

Amendment
of Health
Visiting and
Social Work
(Training)
Act 1962.
1962 c. 33.

11.—(1) The two Councils constituted under the Health Visiting and Social Work (Training) Act 1962 shall be re-named respectively the Council for the Education and Training of Health Visitors and the Central Council for Education and Training in Social Work and, accordingly, for the words "Council for the Training of Health Visitors" and "Council for Training in Social Work", wherever they occur in that Act, there shall be substituted respectively the words "Council for the Education and Training of Health Visitors" and "Central Council for Education and Training in Social Work".

(2) For paragraph 2 of Schedule 1 to the said Act of 1962 (which requires the Privy Council to appoint one person to be chairman of both the Council for the Training of Health Visitors and the Council for Training in Social Work) there shall be substituted—

"2. The chairman of each Council shall be appointed by the Privy Council";

and in paragraph 12 of that Schedule (term of office of the chairman of the Councils) for the words "the Councils" there shall be substituted the words "each Council".

Isles of Scilly.

12.—(1) The Secretary of State may by order direct that this Act shall have effect as if the Council of the Isles of Scilly were a local authority for the purposes of this Act.

(2) In its application to the Isles of Scilly by virtue of an order made under this section, this Act shall have effect with such modifications as may be specified in the order.

Orders and
regulations.

13.—(1) Orders and regulations of the Secretary of State under this Act shall be made by statutory instrument.

(2) Any order made under any provision of this Act, except an order under section 14(3), may be varied or revoked by a subsequent order so made.

(3) In the case of a statutory instrument containing an order under section 2(2) or 14(3) of this Act or regulations under section 6(3) thereof, a draft of the instrument shall be laid before Parliament, and an instrument containing an order under the said section 2(2) shall not be made unless the draft has been approved by a resolution of each House of Parliament.

(4) A statutory instrument containing an order under section 9(1) or 12 of this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(5) Any order or regulations under this Act may be made so as to apply to England only or to Wales only.

For the purposes of this subsection, Monmouthshire shall be deemed to be part of Wales and not of England.

14.—(1) The enactments specified in Schedule 2 to this Act shall have effect subject to the amendments specified in relation thereto in that Schedule, being minor amendments and amendments consequential on the provisions of this Act.

Minor and consequential amendments, repeals and saving for certain schemes.

(2) The enactments specified in Schedule 3 to this Act are hereby repealed to the extent specified in column 3 of that Schedule.

(3) The Secretary of State may by order repeal or amend any provision in any local Act, including an Act confirming a provisional order, or in an instrument in the nature of a local enactment under any Act, where it appears to him that that provision is inconsistent with, or has become unnecessary or requires modification in consequence of, any provision of this Act or corresponds to any provision repealed by this Act.

(4) Nothing in paragraph 7 of Schedule 2 to this Act or in any provision of Schedule 3 thereto shall affect any delegation scheme made under section 46 of the Local Government Act 1958 and in force immediately before the coming into force of section 10 of this Act until the date on which a scheme made in pursuance of subsection (2) of the said section 10 and varying that delegation scheme comes into operation, and until that date the delegation scheme shall have effect, and the functions to which it relates shall be exercisable in accordance with it, as if this Act had not passed.

15.—(1) This Act may be cited as the Local Authority Social Services Act 1970.

Citation, interpretation, commencement and extent.

(2) In this Act "functions" includes powers and duties and "social services functions" has the meaning given by section 3(3) of this Act.

(3) Any reference in this Act to an enactment shall be construed as including a reference to that enactment as amended, applied or extended by or under any other enactment, including this Act.

(4) This Act shall come into force on a day appointed by the Secretary of State by order; and different days may be so appointed for different provisions of this Act.

(5) If it appears to the Secretary of State desirable in the interest of the efficient discharge of the functions of a particular local authority to postpone the coming into force of any provision of this Act in the area of that authority, the Secretary of State may by an order under subsection (4) above relating to that provision either appoint a different day later in date for the coming into force of that provision in the area of that authority or except that area from the operation of the order and make a subsequent order under that subsection appointing a day for the coming into force of that provision in that area.

(6) This Act, except section 11, shall not extend to Scotland.

1962 c. 33.

1920 c. 67.

(7) This Act, except section 11 and this subsection, shall not extend to Northern Ireland; the amendments of the Health Visiting and Social Work (Training) Act 1962 made by section 11 shall be treated for the purposes of section 6 of the Government of Ireland Act 1920 (which restricts the power of the Parliament of Northern Ireland to alter Acts of the Parliament of the United Kingdom passed after the day appointed for the purposes of that section) as having been made by an Act passed before that day.

SCHEDULES

Section 2.

SCHEDULE 1

ENACTMENTS CONFERRING FUNCTIONS ASSIGNED TO
SOCIAL SERVICES COMMITTEE

Enactment	Nature of functions
Children and Young Persons Act 1933 (c. 12) Part III	Protection of the young in relation to criminal and summary proceedings; children appearing before court as in need of care, protection or control; committal of children to approved school or care of fit person, etc.
Part IV	Remand homes, approved schools and children in care of fit persons.
National Health Service Act 1946 (c. 81) Section 22(1) and (2) ...	Care of expectant and nursing mothers and young children.
Section 29	Provision of domestic help for certain households.
The following sections, so far as they apply in relation to any function under the said section 22 or 29 or section 12 or 13 of the Health Services and Public Health Act 1968 (c. 46), being a social services function:—	
Section 20	Submission of proposals for provision of certain services.
Section 58(2)	Acquisition of land.
Section 63	Use of certain premises and equipment.
Section 65	Provision of accommodation for staff.
National Assistance Act 1948 (c. 29) Sections 21 to 27 ...	Provision of residential accommodation for the aged, infirm, needy, etc.
Sections 29 and 30 ...	Welfare of persons who are blind, deaf, dumb or otherwise handicapped or are suffering from mental disorder; use of voluntary organisations for administration of welfare schemes.

SCH. 1

Enactment	Nature of functions
Sections 37 to 41 ...	Registration of disabled or old persons' homes, residential homes for mentally disordered persons and charities for disabled.
Sections 43 to 45 ...	Recovery of costs of providing certain services.
Section 48 ...	Temporary protection of property belonging to persons in hospital or accommodation provided under Part III of the Act, etc.
Section 49 ...	Defraying expenses of local authority officer applying for appointment as receiver for certain patients.
Section 50(3) and (4) ...	Burial or cremation of person dying in accommodation provided under the said Part III; recovery of funeral expenses from his estate.
Section 56(3) except so far as it relates to an offence under section 47(11).	Prosecution of offences.
Section 58 ...	Acquisition of land.
Children Act 1948 (c. 43) ...	Provision for orphans, deserted children, children suffering from mental disorder, etc.; assumption by local authority of parental rights; local authority as fit person under Act of 1933; children in care; financing of children's maintenance and education, etc.; registration of voluntary children's homes and use of voluntary organisations.
Nurseries and Child-Minders Regulation Act 1948 (c. 53)	Regulation of nurseries and child-minders.
Disabled Persons (Employment) Act 1958 (c. 33)	Provision of facilities for enabling disabled persons to be employed or work under special conditions.
Section 3 ...	
Children Act 1958 (c. 65) ...	Protection of children living away from their parents; prosecution of offences.
Adoption Act 1958 (7 & 8 Eliz. 2. c. 5)	Making, etc. arrangements for the adoption of children; regulation of adoption societies; care, possession and supervision of children awaiting adoption; prosecution of offences.

SCH. 1

Enactment	Nature of functions
Mental Health Act 1959 (c. 72) Parts II to VI and IX except— (a) sections 12 and 13; (b) sections 14 to 18 and section 23 so far as it relates to offences under those sections or any enactment thereby applied; (c) sections 28(2), 37, 47(3) and 56(2)(d); (d) section 131 in its application to offences relating to a mental nursing home or a patient admissible to, or receiving treatment in or at, such a home.	Welfare of the mentally disordered while in hospital or mental nursing home; guardianship of persons suffering from mental disorder in- cluding such persons removed to England and Wales from Scotland or Northern Ireland; exercise of functions of nearest relative of person so suffering.
Matrimonial Proceedings (Magistrates' Courts) Act 1960 (c. 48) Section 2(1)(f)	Supervision of child subject to court order in matrimonial proceedings.
Mental Health (Scotland) Act 1960 (c. 61) Section 10	Welfare of certain persons while in hospital in Scotland.
Health Visiting and Social Work (Training) Act 1962 (c. 33) Section 5(1)(b), and as extended by section 45(9) of the Health Services and Public Health Act 1968 (c. 46).	Research into matters relating to local authority welfare services.
Children and Young Persons Act 1963 (c. 37) Part I	Promotion of welfare of children; powers relating to young persons in need of care, protection or control; further provisions for protection of the young in relation to criminal proceedings; recovery of contribu- tions in respect of child.

SCH. 1

Enactment	Nature of functions
Part III, except section 56	Research into matters connected with functions under enactments relating to children and young persons; provisions relating to children in respect of whom parental rights assumed by local authority; assistance of persons formerly in care.
Matrimonial Causes Act 1965 (c. 72)	
Section 37	Supervision of child subject to court order in matrimonial proceedings.
Ministry of Social Security Act 1966 (c. 20)	
Schedule 4	Provision and maintenance of reception centres for persons without a settled way of living.
Health Services and Public Health Act 1968 (c. 46)	
Section 12	Prevention of illness and care and after-care of the sick.
Section 13	Provision of home help and laundry facilities for certain households.
Section 45	Promotion of welfare of old people.
Social Work (Scotland) Act 1968 (c. 49)	
Sections 75(2) and 76(4)	Reference for consideration, etc. of case of child in care whose parent moves to Scotland and transfer of child.
Family Law Reform Act 1969 (c. 46)	
Section 7(4)	Supervision of ward of court.
Children and Young Persons Act 1969 (c. 54)	
• The whole Act except sections 1, 2 and 9 in so far as they assign functions to a local authority in their capacity of a local education authority.	Care and other treatment of children and young persons through court proceedings; accommodation for children in care; welfare, etc. of foster children.

SCH. 1

Enactment	Nature of functions
Chronically Sick and Disabled Persons Act 1970 (c. 44)	
Section 1 	Obtaining information as to need for, and publishing information as to existence of, certain welfare services.
Section 2 	Provision of certain welfare services.
Section 18 	Provision of certain information required by Secretary of State.
Section 6 of this Act ...	Appointment of director of social services, etc.

SCHEDULE 2

Section 14.

MINOR AND CONSEQUENTIAL AMENDMENTS OF ENACTMENTS

The Children and Young Persons Act 1933 (c. 12)

1. In section 96(7) of the Children and Young Persons Act 1933 (which provides that subject to the provisions of section 39 of the Children Act 1948 a local authority may refer certain matters to committees) for the words from "section thirty-nine" to "that committee)" there shall be substituted the words "sections 2 and 3 of the Local Authority Social Services Act 1970 (which require certain matters to be referred to the social services committee and restrict the reference of other matters to that committee)."

1948 c. 43.

The National Health Service Act 1946 (c. 81)

2. At the end of section 22(4) of the National Health Service Act 1946 (which enables regulations to provide in certain cases for the making, variation, etc., of schemes of divisional administration relating to the functions of local health authorities under subsection (1) of that section with respect to the care of certain children and certain other functions of such authorities) there shall be added the words "other than functions under the said subsection (1) which are for the time being social services functions within the meaning of the Local Authority Social Services Act 1970".

3. In paragraph 1 of Part II of Schedule 4 to the said Act of 1946 (which provides that certain matters shall stand referred to a local authority's health committee) after the words "a local health authority" there shall be inserted the words "other than matters which by virtue of section 2 or 3(2)(a) of the Local Authority Social Services Act 1970 stand referred to the authority's social services committee".

4. In paragraph 3 of the said Part II (which empowers a local health authority to authorise their health committee to exercise on their behalf certain functions) after the word "except" there shall be

SCH. 2 inserted the words "any such functions which are for the time being social services functions within the meaning of the Local Authority Social Services Act 1970 and except".

The Children Act 1948 (c. 43)

5. In section 45(1) of the Children Act 1948 (which authorises the making of grants to persons undergoing training with a view to, or in the course of, employment for the purposes of any of the enactments specified in section 39(1) of that Act or employment by a voluntary organisation for similar purposes) for the words "subsection (1) of section thirty-nine of this Act" there shall be substituted the words "subsection (1A) of this section" and after subsection (1) of the said section 45 there shall be inserted—

"(1A) The enactments referred to in subsection (1) of this section are—

- 1933 c. 12. (a) Parts III and IV of the Children and Young Persons Act 1933 ;
- (b) this Act ;
- 1958 c. 65. (c) the Children Act 1958 ;
- (d) the Adoption Act 1958 ;
- 1958 c. 5.
(7 & 8 Eliz. 2.) (e) section 2(1)(f) of the Matrimonial Proceedings (Magistrates' Courts) Act 1960, section 37 of the Matrimonial Causes Act 1965 and section 7(4) of the Family Law Reform Act 1969 ;
- 1960 c. 48.
- 1965 c. 72.
- 1969 c. 46.
- 1963 c. 37. (f) the Children and Young Persons Act 1963, except Part II and section 56 ; and
- 1969 c. 54. (g) the Children and Young Persons Act 1969."

6. In section 49(1) of the said Act of 1948 (which requires county borough councils to keep separate accounts of sums received and expended by them in the exercise of their functions under any of the enactments mentioned in section 39(1) of that Act) for the words "subsection (1) of section thirty-nine of this Act" there shall be substituted the words "subsection (1A) of this section" and after subsection (1) of the said section 49 there shall be inserted—

"(1A) The enactments referred to in subsection (1) of this section are—

- (a) the enactments specified in section 45(1A) of this Act ;
- 1959 c. 72. (b) section 9 of the Mental Health Act 1959 and section 10 of that Act so far as it relates to children and young persons in respect of whom the rights and powers of a parent are vested in a local authority as mentioned in subsection (1)(a) of that section ; and
- 1960 c. 61. (c) section 10 of the Mental Health (Scotland) Act 1960 so far as it relates to children and young persons in respect of whom the rights and powers of a parent are vested in a local authority as mentioned in subsection (1)(a) of that section."

The Local Government Act 1958 (c. 55)

7. In section 46(1) of the Local Government Act 1958 (functions of a county council under certain enactments may be exercised by council of county district for which delegation scheme under that section is in force) for paragraph (a) there shall be substituted—

“(a) Part III of the National Health Service Act 1946, section 1 1946 c. 81. of the National Health Service (Family Planning) Act 1967 1967 c. 39. and sections 10, 11 and 12 of the Health Services and Public 1968 c. 46. Health Act 1968 (midwifery services, health visiting, district nursing and prevention of illness and care and after-care of the sick), except functions under section 27 of the said Act of 1946 (ambulance services) and section 29 thereof (domestic help for certain households) and any functions under section 22 of that Act (care of certain mothers and young children) or section 12 of the said Act of 1968 which immediately after the coming into operation of a scheme made by the council of that district in pursuance of section 10(2) of the Local Authority Social Services Act 1970 were not exercisable by the council of that district by virtue of the delegation scheme ;”

and for paragraph (d) there shall be substituted—

“(d) sections 12 to 18 of the Mental Health Act 1959, section 1959 c. 72. 23 of that Act so far as it relates to offences under sections 14 to 18 thereof or any enactment applied by those sections, sections 28(2), 37, 47(3) and 56(2)(d) of that Act and, in its application to offences relating to a mental nursing home or a patient admissible to, or receiving treatment in or at, such a home, section 131 of that Act”.

8. In section 60(2) of the said Act of 1958 (provision to be made by regulations for the payment of compensation in certain cases) after the words “section 46 of the Children and Young 1969 c. 54. Persons Act 1969” there shall be inserted the words “or of section 2 or 6 of the Local Authority Social Services Act 1970”.

The London Government Act 1963 (c. 33)

9. In section 47(3) of the London Government Act 1963 (which specifies enactments functions under which are to be exercisable by London borough councils and the Common Council of the City of London) for paragraph (f) there shall be substituted—

“(f) section 9 of the Mental Health Act 1959 and section 10 of that Act so far as it relates to children and young persons in respect of whom the rights and powers of a parent are vested in a local authority as mentioned in subsection (1)(a) of that section ;

(g) section 10 of the Mental Health (Scotland) Act 1960 so 1960 c. 61. far as it relates to children and young persons in respect of whom the rights and powers of a parent are vested in a local authority as mentioned in subsection (1)(a) of that section ;

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1960 c. 48.
1963 c. 37.

- (h) section 2(1)(f) of the Matrimonial Proceedings (Magistrates' Courts) Act 1960 ;
- (i) the Children and Young Persons Act 1963, except Part II and section 56 ”.

The Children and Young Persons Act 1963 (c. 37)

1948 c. 43.

10. In section 56(2) of the Children and Young Persons Act 1963 (prosecution of certain offences) for the words “subsection (2) of section 39 of the Children Act 1948 ” there shall be substituted the words “subsection (1) of section 3 of the Local Authority Social Services Act 1970 ” and for the words “those sections ” there shall be substituted the words “the said section 85 and section 2 of the said Act of 1970 ”.

The Children and Young Persons Act 1969 (c. 54)

11.—(1) In subsection (1)(a) of section 63 of the Children and Young Persons Act 1969 (which requires every local authority to make returns to the Secretary of State with respect to the performance by the authority of the functions specified in section 39(1) of the Children Act 1948) for the words from “the functions ” to “committees)” there shall be substituted the words “their functions under the enactments mentioned in subsection (6) of this section ”.

(2) In subsection (5) of the said section 63 (which requires the Secretary of State to lay before Parliament reports with respect to certain matters, including the exercise by local authorities of the functions specified in the said section 39(1)) for the words from “the functions ” to “1948 ” there shall be substituted the words “their functions under the enactments mentioned in subsection (6) of this section ”.

(3) At the end of the said section 63 there shall be added the following subsection:—

“(6) The enactments referred to in subsections (1) and (5) of this section are—

1933 c. 12.

(a) Parts III and IV of the Children and Young Persons Act 1933 ;

(b) the Children Act 1948 ;

1958 c. 65.

(c) the Children Act 1958 ;

1958 c. 5.
(7 & 8 Eliz. 2).
1959 c. 72.

(d) the Adoption Act 1958 ;

(e) section 9 of the Mental Health Act 1959 and section 10 of that Act so far as it relates to children and young persons in respect of whom the rights and powers of a parent are vested in a local authority as mentioned in subsection (1)(a) of that section ;

1960 c. 61.

(f) section 10 of the Mental Health (Scotland) Act 1960 so far as it relates to children and young persons in

respect of whom the rights and powers of a parent are vested in a local authority as mentioned in subsection (1)(a) of that section ; SCH. 2

- (g) section 2(1)(f) of the Matrimonial Proceedings (Magistrates' Courts) Act 1960, section 37 of the Matrimonial Causes Act 1965 and section 7(4) of the Family Law Reform Act 1969 ;
- (h) the Children and Young Persons Act 1963, except 1963 c. 37. Part II and section 56 ;
- (i) this Act."

The Chronically Sick and Disabled Persons Act 1970 (c. 44)

12.—(1) In section 2(1) of the Chronically Sick and Disabled Persons Act 1970 (which imposes a duty on local authorities to make arrangements for certain matters in exercise of their functions under section 29 of the National Assistance Act 1948) the words "under the general guidance of the Secretary of State and" shall be omitted, and after the words "the purpose)" there shall be inserted the words "and to the provisions of section 7(1) of the Local Authority Social Services Act 1970 (which requires local authorities in the exercise of certain functions, including functions under the said section 29, to act under the general guidance of the Secretary of State)".

(2) In section 2(2) of the said Act of 1970 (which makes provision in connection with the carrying into effect of the said arrangements) after the words "section 35(2)" there shall be inserted the words "and to the said section 7(1)".

SCHEDULE 3

Section 14.

REPEALS

Chapter	Short title	Extent of repeal
11 & 12 Geo. 6. c. 29.	The National Assistance Act 1948.	Section 33(2). In section 35(2), the words "under the general guidance of the Minister and". Schedule 3.
11 & 12 Geo. 6. c. 43.	The Children Act 1948.	Sections 39 to 42. In Schedule 3, the entry relating to section 96(7) of the Children and Young Persons Act 1933.
6 & 7 Eliz. 2. c. 33.	The Disabled Persons (Employment) Act 1958.	In section 3(3), the words from "and subject" onwards. In the Schedule, paragraph 2 and in paragraph 3(3) the words from "and in particular" to "three".

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Chapter	Short title	Extent of repeal
6 & 7 Eliz. 2. c. 55.	The Local Government Act 1958.	In section 46, in subsection (1), paragraphs (b), (c) and (e) and the words from "and, subject" onwards, subsections (2) and (3) and in subsection (4), the words from "or Part I" to "1948". Section 47, except subsections (1), (2), (6) and (7) as applied by section 48(1) of that Act, and subsections (5) and (8) as applied by section 52(2) thereof, and in subsection (2) the words from "(except" to "section)". In section 48, in subsection (1), the words from "subject" onwards. In section 50, in subsection (1), the words from "or the amendment" to "1948" and the words from "or for the amendment" onwards and, in subsection (2), the words "or varying or revoking schemes", the words "or a scheme", the words "or fails" and the words "or scheme". Section 51.
7 & 8 Eliz. 2. c. 5.	The Adoption Act 1958.	In Schedule 4, the entry relating to section 39 of the Children Act 1948.
7 & 8 Eliz. 2. c. 72.	The Mental Health Act 1959.	In Schedule 7, Part II, the entry relating to the Children Act 1948.
8 & 9 Eliz. 2. c. 48.	The Matrimonial Proceedings (Magistrates' Courts) Act 1960.	Section 3(7).
8 & 9 Eliz. 2. c. 61.	The Mental Health (Scotland) Act 1960.	In Schedule 4, the entry relating to section 39 of the Children Act 1948.
1963 c. 33.	The London Government Act 1963.	In section 3(2)(d), the words "47(3) and". In section 47(2), the words from "and, without" onwards.
1963 c. 37.	The Children and Young Persons Act 1963.	In Schedule 3, paragraph 41.
1965 c. 72.	The Matrimonial Causes Act 1965.	Section 37(3).

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Chapter	Short title	Extent of repeal
1968 c. 46.	The Health Services and Public Health Act 1968.	In section 45, in subsection (5)(b), the words from "and Parts I" to "1(1)" and subsections (6), (7) and (8). Section 68. In Schedule 3, Part I, in the entry relating to the Disabled Persons (Employment) Act 1958, the second paragraph and in the entry relating to the Local Government Act 1958, paragraph (a), in paragraph (b) the words from "(e)" to "1968", where next occurring, and paragraph (c).
1969 c. 46.	The Family Law Reform Act 1969.	In section 7(4), the words "and (3)".
1969 c. 54.	The Children and Young Persons Act 1969.	In Schedule 5, paragraph 18.